

Foreign Employment Act, 2007

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Foreign Employment Act, 2064 (2008)

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Amending Acts

1. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015) 2072.06.14
2. Act to Amend Some Nepal Acts, 2075 (2018) 2075.11.19
3. Act to Amend Some Nepal Acts, 2082 (2025) 2082.04.14

Act Number 18 of the year 2064 (2008) made by the Legislature-Parliament

An Act Made to Amend and Consolidate Laws Relating to Foreign Employment

Preamble: Whereas, it is expedient to amend and consolidate laws relating to foreign employment for promoting the foreign employment business, making it safe, systematic and dignified, and protecting the rights and interests of workers going for foreign employment and foreign employment entrepreneurs,

The Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act shall be called the "Foreign Employment Act, 2064 (2008)".
(2) This Act shall extend to the whole of Nepal and shall also apply to any person who, while residing outside Nepal, commits any act contrary to this Act.
(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
(a) "Foreign Employment" means employment obtained by a worker in a foreign country.
(b) "Worker" means a Nepali citizen who obtains foreign employment.
(c) "Foreign Employment Business" means the business operated to provide employment in a foreign country for Nepali citizens.
(d) "Department" means the Department of Foreign Employment. Added by the Act to Amend Some Nepal Acts, 2075 (2018).(d1) "Ministry" means the Ministry of Labour, Employment and Social Security.
(e) "Organization" means an organization established under the prevailing Companies Act to operate a foreign employment business.
(f) "License" means a license granted pursuant to Section 11 to operate a foreign employment business.

(g) "Licensee" means an organization that has obtained a license pursuant to Section 11.

(h) "Service Fee" means the amount charged by a foreign employment entrepreneur for sending a worker abroad.

(i) "Executive Director" means the Executive Director pursuant to Section 41.

(j) "Employer Organization" means an organization situated in a foreign country that provides employment to a worker in that country.

(k) "Board" means the Foreign Employment Board constituted pursuant to Section 38.

(l) "Labour Attaché" means a Labour Attaché appointed pursuant to Section 68, and this term also refers to an authorized officer assigned the responsibility of promoting the welfare of Nepali workers in a diplomatic mission located abroad.

(m) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2

Provisions Relating to Foreign Employment

3.

Prescribing Countries for Operating Foreign Employment Business: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, prescribe the countries in which foreign employment business may be operated. (2) The Government of Nepal may, from among the countries prescribed pursuant to Sub-section (1), suspend the operation of foreign employment business in any country for a specific period.

4. Entering into Bilateral Agreement: The Government of Nepal may enter into a bilateral labour agreement with a foreign country where Nepali workers are working or have the potential to work in foreign employment.

5. Selection of Organization: (1) If a request is made to the Government of Nepal by any foreign country or employer organization to select and send workers, the Government of Nepal may, on the basis of open competition, select a licensee organization and send workers through such an organization. Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).5(1A). While selecting a licensee organization pursuant to Sub-section (1), consideration shall also be given to whether any complaint has been lodged against such an organization regarding the torture of women workers who went for foreign employment through such organization, and whether such licensee organization has made special arrangements regarding the safety of workers. (2) The Department shall demand additional cash deposit or bank guarantee from the organization selected pursuant to Sub-section (1). (3) The Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). other bases and procedures for selecting an organization pursuant to Sub-section (1) shall be as prescribed. 6.

Sending Workers by Entering into Treaty or Agreement: (1) Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may send workers to a country with which Nepal has diplomatic relations by entering into a treaty or agreement with the government of that country, through any office or body of the Government of Nepal or an organization wholly owned by the Government of Nepal. (2) For formulating policies and making necessary other arrangements to make the procedure followed while sending workers by the Government of Nepal pursuant to Sub-section (1) systematic, competitive and transparent, there shall be a Steering Committee as follows:- (a) Minister or Minister of State for Labour, Employment and Social Security ? Chairperson (b) Secretary, Ministry ? Member (c) Representative (Joint Secretary Level), Ministry

of Finance ? Member (d) Representative (Joint Secretary Level), Ministry of Industry, Commerce and Supplies ? Member (e) Representative (Joint Secretary Level), Ministry of Home Affairs ? Member (f) Representative (Joint Secretary Level), Ministry of Foreign Affairs ? Member (g) Executive Director ? Member (h) Women Representative, National Women Commission ? Member (i) One each from recognised Trade Union Federations ? Member (j) One Representative of Foreign Employment Entrepreneurs Associations ? Member (k) Director General, Department ? Member-Secretary (3) The Steering Committee pursuant to Sub-section (2) may, as required, invite domestic or foreign experts related to foreign employment as observers to its meeting. (4) The Steering Committee pursuant to Sub-section (2) shall regulate its own working procedures. (5) The selection of persons required to be sent as workers pursuant to this Section shall be made from amongst persons who have fulfilled the prescribed criteria and procedures, on the basis of impartiality and transparency. (6) If any problem arises for a worker going for foreign employment pursuant to this Section, the Government of Nepal shall have the responsibility to resolve such problem. 7. Minor Not to be Sent to Employment: No minor who has not completed the age of eighteen years shall be sent for foreign employment. 8. No Gender Discrimination: While sending workers for foreign employment pursuant to this Act, no gender discrimination shall be made. Provided that, if the employer organization requests only male or only female workers, there shall be no bar to sending workers as per the requisition received. 9.

Providing Special Facilities and Reservation: (1) The Government of Nepal may provide special facilities to women, Dalits, indigenous nationalities, oppressed persons, persons affected by natural calamities and persons from remote areas going for foreign employment. (2) While sending workers for foreign employment, the organization shall provide reservation to women, Dalits, indigenous nationalities, oppressed class, backward area and class and persons from remote areas in such numbers as prescribed by the Government of Nepal. Chapter-3 Provisions Relating to License 10. Not to Operate Foreign Employment Business Without License: No person shall operate a foreign employment business without obtaining a license pursuant to this Act. 11. Provisions Relating to License: (1) An organization wishing to operate a foreign employment business shall submit an application to the Department stating the particulars as prescribed, for the license. Amended by the Act to Amend Some Nepal Acts, 2075 (2018).(2) Upon examining the application submitted pursuant to Sub-section (1), if it appears appropriate to grant a license to operate a foreign employment business, the Department shall, after taking the prescribed license fee and a deposit of fifty lakh rupees in cash and a bank guarantee of one crore fifty lakh rupees from the organization applying for a license aiming to send up to three thousand workers annually, a deposit of one crore rupees in cash and a bank guarantee of three crore rupees from the organization applying for a license aiming to send more than three thousand up to five thousand workers annually, and a deposit of two crore rupees in cash and a bank guarantee of four crore rupees from the organization applying for a license aiming to send more than five thousand workers annually, grant the license.

Amended by the Act to Amend Some Nepal Acts, 2075 (2018).(3) An organization that has obtained a license before the commencement of Sub-section (2) shall, within six months from the date of commencement of that sub-section, deposit the deposit amount and bank guarantee as per that sub-section.

(4) After obtaining a license by keeping a deposit pursuant to Sub-section (2), if such deposit appears insufficient in proportion to the business volume of the licensee, the Department shall order the deposit of an additional deposit as required.

(5) The Department may accept a bank guarantee for the additional deposit to be deposited pursuant to Sub-section (4).

(6) If, upon examining the application pursuant to Sub-section (2), it is found not feasible to grant a license, the Department shall, within seven days of the decision not to grant a license, inform the applicant of the reasons.

(7) An applicant aggrieved by the decision of the Department pursuant to Sub-section (6) may, within thirty-five days from the date of receipt of such information, file an appeal with the Amended by the Act to Amend Some Nepal Acts, 2075 (2018).Ministry, and the decision made by the Amended by the Act to Amend Some Nepal Acts, 2075 (2018).Ministry regarding such appeal shall be final. Added by the Act to Amend Some Nepal Acts, 2075 (2018).11A. Licensee Organizations May Merge: (1) Two or more licensee organizations may merge by mutual agreement if they wish to do so.

(2) The procedure for the merger of licensee organizations and the provisions regarding conditions to be fulfilled shall be as prescribed. Added by the Act to Amend Some Nepal Acts, 2075 (2018).11B. License Not to be Granted to More Than One Organization Having Shares of Members of Same Undivided Family: (1) Notwithstanding anything contained elsewhere in this Act, after the commencement of this Section, license shall not be granted to more than one organization having shares of members of the same undivided family.

(2) If, at the time of commencement of this Section, there are more than one organization having shares of members of the same undivided family, they shall merge with each other pursuant to Section 11A within six months from the date of commencement of this Section.

(3) Notwithstanding anything contained elsewhere in this Act, after the period pursuant to Sub-section (2), the license of more than one organization having shares of members of the same undivided family shall not be renewed. 12. Validity Period and Renewal of License: (1) A license shall be valid for one fiscal year, except in the case of its cancellation pursuant to Section 13.

Regardless of the date on which the license is granted, its validity period shall expire at the end of that fiscal year. (2) A licensee wishing to renew the license may, within the prescribed time in each fiscal year, submit the prescribed particulars and fee and get the license renewed. (3) Notwithstanding anything contained in Sub-section (1) or (2), a licensee may pay the renewal fee for three years at once and get the license renewed for three fiscal years. 13. Cancellation of License: (1) If a licensee fails to renew the license within the period pursuant to Section 12, such license shall be cancelled. (2) The Department may cancel the license obtained by a licensee if the licensee commits any of the following acts:- Amended by the Act to Amend Some Nepal Acts, 2075 (2018).(a) Obtained the license or sent workers for foreign employment by submitting false documents or particulars, (b) Failed to deposit the cash deposit within the period pursuant to Sub-section (3) of Section 11, (c) Failed to deposit the additional deposit as per the order given pursuant to Sub-section (4) of Section 11, (d) Failed to reimburse the deposit amount pursuant to Sub-section (3) of Section 35, Added by the Act to Amend Some Nepal Acts, 2075 (2018).(d1) Transferred or changed ownership or liability contrary to Section 14, Deleted by Some Nepal Acts Amendment Act, 2062 (2005).(e) (f) Committed any act contrary to this Act or the rules made under this Act. (3) Before cancelling the license pursuant to Sub-section (2), the Department shall give the concerned licensee a reasonable opportunity to present their defence. (4) A licensee aggrieved by the decision to cancel the license under this Section may, within thirty-five days from the date of receipt of information about the decision to cancel the license, file an appeal with the Amended by the Act to Amend Some Nepal Acts, 2075 (2018).Ministry, and the decision made by the Amended by the Act to Amend Some Nepal Acts, 2075 (2018).Ministry regarding such appeal shall be final. 14. Not to Transfer or Change Ownership or Liability: Notwithstanding anything contained in the prevailing law, a licensee shall not transfer or change the ownership or liability of the organization without the

approval of the Department. Chapter-4 Provisions Relating to Prior Approval and Worker Selection 15.

Prior Approval to be Obtained: (1) On the basis of the agreement or understanding with the employer organization, a licensee shall submit an application to the Department Added by the Act to Amend Some Nepal Acts, 2075 (2018).online for prior approval to send workers for foreign employment, stating the following particulars:- (a) Name, address of the employer organization and the country to which workers are to be sent, (b) Type of foreign employment, (c) Type and number of workers, (d) Salary, facilities and leave to be received by the worker, (e) Working days and hours of the worker, (f) Amended by the Act to Amend Some Nepal Acts, 2075 (2018).Original copy of the demand letter and power of attorney certified by the Nepali diplomatic mission in the destination country, (g) Copy of the contract to be made between the employer organization and the worker, (h) Copy of the contract to be made between the licensee and the worker, (i) Other matters as prescribed. (2) Upon examining the application submitted pursuant to Sub-section (1), if the request of the licensee appears appropriate, the Department shall, within four days from the date of application, grant prior approval to initiate proceedings to send Nepali workers for foreign employment. Added by the Act to Amend Some Nepal Acts, 2075 (2018).(2A) The Nepali diplomatic mission in the destination country shall send the certified documents mentioned in Clause (f) of Sub-section (1) to the Department within fifteen days. It shall also send information stating whether the employer has arranged air tickets for the worker. (3) Notwithstanding anything contained in Sub-section (2), the Department shall not grant prior approval for selecting workers in the following circumstances:- (a) If the service terms and facilities are unsatisfactory in proportion to the qualifications of the workers demanded by the employer organization, (b) If the proposed foreign employment appears to be of a nature adversely affecting the dignity, prestige or health of the worker, (c) Amended by the Act to Amend Some Nepal Acts, 2075 (2018).If it appears unsuitable from the perspective of worker safety, occupational safety and health, (d) If other circumstances as prescribed exist. (4) If a decision is made not to grant prior approval pursuant to Sub-section (3), the licensee shall be informed of the reasons for such decision. 16.

Advertisement to be Published: (1) After obtaining prior approval pursuant to Section 15, the licensee shall publish an advertisement for the selection of workers in any national daily newspaper published in Nepali language and on its own website, allowing a period of at least seven days. (2) The licensee shall, on the same day, provide a copy of the notice sent for publication of the advertisement pursuant to Sub-section (1) to the Department for the purpose of publishing it on the Department's website. (3) Provisions relating to the publication of the advertisement pursuant to Sub-section (1) and the selection of workers shall be as prescribed. 17. Selection of Worker and Preparation of List: (1) After receiving an application pursuant to Sub-section (3) of Section 15, the licensee shall select workers based on the qualifications and experience of the applicant according to the nature of the work demanded and other matters as prescribed, prepare a list of selected persons, post such list on the notice board of the licensee's office, and submit one copy thereof to the Department. (2) If a complaint is lodged with the Department alleging any irregularity in the preparation of the list of workers pursuant to Sub-section (1), or if the Department itself comes to know of such irregularity through any means, the Department may immediately conduct a necessary inquiry into the matter, and if upon such inquiry any irregularity as alleged is found, the Department shall order the immediate suspension of all activities related to worker selection. 18. Approval Required to Take Passport Abroad: If a licensee needs to take the passport of persons selected to go for foreign employment pursuant to Section 17 abroad for a visa, the licensee shall obtain the approval of the Department. 19.

Provisions Relating to Foreign Employment Permit Sticker: (1) After obtaining the visa for workers selected pursuant to Section 17, the licensee shall, before sending such workers for foreign employment, submit a

written request to the Department for a Foreign Employment Permit (Sticker) attaching the following particulars:- (a) Certificate of having undergone skill-based training, if required for any work, and certificate of orientation training, (b) Medical fitness certificate, (c) Certificate of insurance, (d) Contract made between the licensee and the worker, (e) Contract made between the employer organization and the worker, (f) Receipt or bank voucher of the amount paid by the worker to the licensee, (g) Other matters as prescribed. (2) Upon examining the particulars submitted pursuant to Sub-section (1), if they are found to match the particulars submitted pursuant to Section 15, the Department shall, within three days, affix a Foreign Employment Permit (Sticker) on the passport of such workers. (3) If the information provided pursuant to Sub-section (1) is found to differ from the particulars submitted pursuant to Section 15, the Department may prohibit the licensee from sending workers for foreign employment, and shall inform the licensee of the reasons for such prohibition. 20. Sending for Foreign Employment: (1) Deleted by the Act to Amend Some Nepal Acts, 2075 (2018). The licensee shall send the concerned worker for foreign employment within the specified period for entry into the concerned country, or if no period is specified, within three months from the date of obtaining the foreign employment permit Added by the Act to Amend Some Nepal Acts, 2075 (2018).. (2) If unable to send the worker for foreign employment within the time limit pursuant to Sub-section (1), the concerned licensee shall refund the amount received from the concerned worker along with an additional Amended by the Act to Amend Some Nepal Acts, 2075 (2018). twenty-five percent per annum of such amount within thirty days. (3) If a worker refuses or is unable to go for foreign employment after the visa has been obtained, the licensee, while refunding the amount to the worker, shall deduct only the visa fee and refund the remaining amount. Provided that, if the worker refused to go due to terms differing from those advertised after obtaining prior approval, the visa fee shall not be deducted. 21.

Person May Go for Foreign Employment Individually: (1) If a person wishes to go abroad individually for the purpose of foreign employment, the person shall submit an application to the Department for approval stating the following matters:- (a) The country to which the person wishes to go for employment, (b) The nature of work to be done abroad, (c) Letter of acceptance provided by the employer organization, (d) Agreement paper clearly stating the terms and facilities of employment, (e) Certificate of having received orientation training, (f) Medical fitness certificate. (2) After receiving the application pursuant to Sub-section (1), the Department shall, upon necessary inquiry, if the applicant's request appears appropriate, grant approval for the applicant to go abroad for employment, and while granting such approval, the Department shall require the submission of proof of insurance. (3) Notwithstanding anything contained in this Section, no licensee shall send workers individually. Added by the Act to Amend Some Nepal Acts, 2075 (2018).21A. Complaint May Be Lodged: (1) A complaint may be lodged regarding matters that can be complained about under this Act also by post or electronic means, and the Department or office shall register such complaint and take action. (2) Regarding matters that can be complained of to the Department under this Act, a complaint may also be lodged with the concerned Chief District Officer at the district level. (3) If a complaint lodged with the Chief District Officer pursuant to Sub-section (2) is against a licensee organization, the complaint shall be sent to the Department within seven days. (4) The Chief District Officer may, concerning a complaint lodged against any person pursuant to Sub-section (2), conduct an inquiry and, if it appears necessary to provide compensation to the worker or their representative, facilitate a settlement by mediating between both parties to provide compensation, and shall inform the Department of such settlement. (5) If a settlement cannot be reached pursuant to Sub-section (4), or if the nature of the complaint itself does not appear suitable for mediation, the Chief District Officer shall send the original complaint to the Department for necessary action. Added by the Act to Amend Some Nepal Acts, 2075 (2018).21B.

Provisions Relating to Re-permission for Foreign Employment: (1) A worker wishing to obtain re-permission

for foreign employment shall submit an application to the concerned body with the required documents as prescribed. (2) A worker who is abroad may obtain permission for foreign employment a maximum of two times from the Nepali diplomatic mission responsible for the concerned country. (3) Other provisions relating to re-permission for foreign employment shall be as prescribed. 22. Domestic Airport to be Used: (1) While sending workers for foreign employment, the licensee shall arrange to send them using domestic airports. (2) If it is necessary to use a foreign airport for sending workers due to reasons such as unavailability of air tickets from the domestic airport pursuant to Sub-section (1), prior approval of the Department must be obtained. (3) While going outside Nepal to use a foreign airport with the approval of the Department pursuant to Sub-section (2), the worker shall register at the departure point's immigration office as prescribed. 23. Minimum Remittance May Be Prescribed: The Government of Nepal may, by publishing a notice in the Nepal Gazette, prescribe the minimum remuneration to be received by workers going for foreign employment. 24. Service Fee and Promotion Expenses: (1) The Government of Nepal shall prescribe the maximum limit of the amount that an organization may charge per worker, including service fee and promotion expenses, for any specific country or company. (2) After the licensee informs that the visa has been obtained from the country to which the worker selected for foreign employment is going, the worker shall deposit the amount as per the contract in the office or bank account of the licensee. (3) If the amount is deposited in the office of the licensee pursuant to Sub-section (2), a receipt thereof shall be given to the worker. Explanation: For the purposes of this Section, "Promotion Expenses" means the visa fee incurred by the licensee while sending a worker to employment and the various expenses incurred in Nepal and abroad while making the worker's quota available. 25.

Foreign Employment Contract to be Made: (1) Before departure for foreign employment, a contract shall be made between the employer organization or its representative and the worker, and between the licensee and the worker, clearly explaining to the worker regarding the safety situation in the concerned country, the services and conditions of employment, the conditions to be followed by both parties, and the remuneration the worker will receive Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).. (2) The licensee shall submit two copies of the contract pursuant to Sub-section (1), translated into the Nepali language, to the Department, and the Department shall certify such contract, retain one copy in the Department, and give the other copy to the worker. 26. Insurance to be Done: (1) Before sending a worker for foreign employment pursuant to this Act, the licensee shall arrange insurance of at least five lakh rupees for each worker, valid for the entire contract period, to provide compensation if the worker who has gone for foreign employment dies or becomes disabled at any time for any reason. (2) A person going for foreign employment individually pursuant to Section 21 shall also arrange insurance of the amount mentioned in Sub-section (1) before going for foreign employment. (3) Other provisions relating to insurance shall be as prescribed. Chapter-5 Provisions Relating to Training and Classification of Workers 27. Training to be Taken: A worker going for foreign employment shall, before going for foreign employment, take orientation training as prescribed from an organization that has obtained a permit pursuant to Section 28 from the Department. 28.

Provisions Relating to Organization Conducting Orientation Training: (1) An organization wishing to provide orientation training to workers going for foreign employment shall submit an application to the Department for permission to conduct such orientation training. (2) The Department shall present the application received pursuant to Sub-section (1) to the Board. (3) Upon examining the application received pursuant to Sub-section (2), if the infrastructure, manpower and other resources of the organization providing the orientation training are found to be adequate, the Board shall send a letter to the Department to grant permission to the applicant to conduct orientation training for workers going for foreign employment. (4) If a

letter to grant permission is received pursuant to Sub-section (3), the Department shall, after taking the prescribed deposit and permission fee, grant permission to the applicant to conduct orientation training. (5) An organization that had obtained permission and was conducting training at the time of commencement of this Act shall, if it fulfills the criteria and conditions pursuant to this Section, have its permission renewed by the Department. (6) Provisions relating to the Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). renewal, renewal fee and cancellation of the permission granted to an organization to conduct orientation training pursuant to this Section shall be as prescribed. Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).29. Determination of Curriculum and Standard of Orientation Training: (1) The curriculum and standard of orientation training provided by the organization permitted to conduct orientation training pursuant to Section 28 shall be determined by the Board. (2) The curriculum determined pursuant to Sub-section (1) shall include, in addition to other matters, subjects related to situations of gender-based violence and measures for its resolution. 30. Skill-Based Training to be Taken: A worker going for foreign employment to perform work requiring skill-based training shall take such training from an institution recognized by the Government of Nepal. Explanation: For the purposes of this Section, "Institution recognized by the Government of Nepal" means the Council for Technical Education and Vocational Training and other institutions established under the prevailing law to provide similar types of training and affiliated with the said Council. Added by the Act to Amend Some Nepal Acts, 2075 (2018).30A.

Provisions Relating to Skill Testing: (1) If the skill-based training provided for going to foreign employment is for up to six months, the skill testing of such training shall be conducted by the National Vocational Training Institute. (2) The method and procedure for skill testing pursuant to Sub-section (1) shall be as determined by the National Vocational Training Institute. (3) Notwithstanding anything contained elsewhere in this Section, skill testing pursuant to this Section shall not be required for training provided by bodies or organizations under the Government of Nepal or wholly or substantially owned by the Government of Nepal themselves, or for training for which skill testing has been conducted by the Council for Technical Education and Vocational Training. 31. Classification of Workers: The Government of Nepal may, by publishing a notice in the Nepal Gazette, prescribe provisions relating to the classification of workers going for foreign employment and the skill-based training required to be taken according to the classification. Chapter-6 Provisions Relating to Foreign Employment Welfare Fund 32. Establishment of Foreign Employment Welfare Fund: (1) A Foreign Employment Welfare Fund shall be established under the Board for the social security and welfare of workers who have gone for foreign employment and who have returned from foreign employment and their families. (2) The Fund pursuant to Sub-section (1) shall consist of the following amounts:- (a) Amount deposited by the worker as prescribed before going for foreign employment, (b) Interest amount obtained from the mobilization as prescribed of the deposit amount kept pursuant to Sub-section (2) of Section 11, (c) Amount received as license fee and its renewal fee, (d) Amount received as permission fee and its renewal fee for organizations conducting training pursuant to Section 28, (e) Amounts received by the Fund from time to time from organizations related to the foreign employment business, (f) Grant and assistance amounts received from domestic or foreign individuals or bodies. (3) Before receiving assistance amounts from foreign individuals or bodies pursuant to Clause (f) of Sub-section (2), the approval of the Government of Nepal shall be obtained. Explanation: For the purposes of this Act, "Family" means the husband or wife, son, daughter or mother, father whom the worker who has gone for foreign employment or returned from foreign employment must support, and in the case of a female worker, also includes her father-in-law and mother-in-law. 33.

Utilization and Operation of Foreign Employment Welfare Fund: (1) The Foreign Employment Welfare Fund shall be utilized for the following purposes:- (a) To provide skill-based training to workers going for foreign

employment, (b) To repatriate workers to the country, provide compensation, and provide financial assistance to workers so returned or their families, in case of disability of the worker or due to the reason mentioned in Deleted by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015). of Section 75, Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).(b1) To defend and plead for offenders charged with serious criminal offences while abroad for foreign employment, Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 (2015).(b2) To conduct publicity about the rights and potential risks of workers going for foreign employment, (c) To conduct employment-oriented programs for workers returning from foreign employment, (d) To bring back the body of a worker who died while abroad for foreign employment and whose body is lying unclaimed, and provide financial assistance to the worker's family, (e) To carry out activities related to foreign employment promotion, (f) To carry out other activities as prescribed. (2) Other provisions relating to the operation of the Foreign Employment Welfare Fund shall be as prescribed. Chapter-7 Provisions Relating to Monitoring and Investigation 34. Monitoring: (1) The Department shall, from time to time, monitor and inspect the offices of licensees regarding compliance with this Act or the rules made under this Act or the directives given under this Act, and for this purpose, may inspect the records and other relevant documents maintained by the licensee. (2) It shall be the duty of the licensee to provide the details and records as requested during the monitoring or inspection pursuant to Sub-section (1). 35.

Investigation: (1) If a complaint is lodged by a worker regarding the employer organization failing to fulfill its contractual obligations or the licensee failing to take necessary and appropriate action to enforce the terms mentioned in the contract, the Department shall conduct or cause to conduct a necessary investigation into the matter. (2) If, from the investigation conducted pursuant to Sub-section (1), it appears necessary to repatriate the concerned worker, the Department shall order the licensee to provide the amount required for repatriation of the worker. (3) If the licensee fails to provide such amount as per the order given by the Department pursuant to Sub-section (2), such worker shall be repatriated from the deposit amount kept by the licensee pursuant to Section 11. If the deposit amount is utilized in this manner, the concerned licensee shall be notified as soon as possible to reimburse such amount, and the licensee shall reimburse such amount to the deposit within fifteen days of receiving such notice. (4) If the expenditure incurred for repatriating a worker from the deposit amount kept pursuant to Section 11 is insufficient, the licensee shall pay the deficit amount within the time limit prescribed by the Department, and if not paid within such time limit, such amount shall be recovered as a government due. 36. Complaint for Compensation: (1) If the employer organization fails to provide employment according to the terms stipulated in the agreement, the worker or their representative may lodge a complaint with the Department for compensation, along with evidence thereof. (2) Upon investigating the complaint lodged pursuant to Sub-section (1), if the allegations are found to be reasonable, the Department may order the licensee to pay compensation for the total expenses incurred for going to foreign employment. 37. Power to Give Directives: (1) The Government of Nepal may, from time to time, give necessary directives to licensees regarding foreign employment. (2) It shall be the duty of the concerned licensee to comply with the directives given pursuant to Sub-section (1). Chapter-8 Constitution, Functions, Duties and Powers of the Board 38.

Constitution of the Board: (1) There shall be constituted a Foreign Employment Board as follows for the purpose of promoting the foreign employment business, making it safe, systematic and dignified, and protecting the rights and interests of workers going for foreign employment and foreign employment entrepreneurs, among other purposes:- (a) In the Act to Amend Some Nepal Acts, 2075 (2018), the words "Labour, Employment and Transport Management" in clauses (a), (b) and (d) were replaced by the words

"Labour, Employment and Social Security".Minister/Minister of State for Labour, Employment and Social Security ? Chairperson (b) In the Act to Amend Some Nepal Acts, 2075 (2018), the words "Labour, Employment and Transport Management" in clauses (a), (b) and (d) were replaced by the words "Labour, Employment and Social Security".Amended by Some Nepal Acts Amendment Act, 2062 (2005).Minister of State or Assistant Minister for Labour, Employment and Social Security ? Vice-Chairperson (c) Member, National Planning Commission (looking after the relevant sector) ? Member (d) Secretary, In the Act to Amend Some Nepal Acts, 2075 (2018), the words "Labour, Employment and Transport Management" in clauses (a), (b) and (d) were replaced by the words "Labour, Employment and Social Security".Ministry of Labour, Employment and Social Security ? Member (e) Secretary or representative of the First Class of Nepal Civil Service designated by him/her, Ministry of Home Affairs ? Member (f) Secretary or representative of the First Class of Nepal Civil Service designated by him/her, Ministry of Foreign Affairs ? Member (g) Secretary or representative of the First Class of Nepal Civil Service designated by him/her, Ministry of Finance ? 51. Penalty for Refusing to Refund Amount or Pay Compensation: (1) If any licensee fails to refund the amount referred to in sub-section (2) of Section 20 within the time limit as per that sub-section, or refuses to pay compensation as per sub-section (2) of Section 36, the Department may, from the cash deposit kept by the licensee pursuant to Section 11, cause such amount to be refunded or compensation to be paid to the concerned worker, impose a fine of one hundred thousand rupees, and cancel the license. (2) If, upon refund of the amount or payment of compensation pursuant to sub-section (1), the amount from the cash deposit kept by the licensee pursuant to Section 11 is insufficient when refunding the amount or paying compensation to the concerned worker, the Department shall give the licensee a period of sixty days to pay such insufficient amount, and if the amount is not paid within that period, such amount shall be recovered from the property of the licensee. 52.

Penalty for Licensee Sending Workers Individually: If any licensee sends workers individually contrary to sub-section (3) of Section 21, such licensee shall be liable to a fine of one hundred thousand rupees to three hundred thousand rupees, or cancellation of the license, or both. 53. Penalty for Charging Excess Visa Fee, Service Fee, or Promotion Expenses: If any licensee charges a fee for a visa obtained free of charge, or charges a fee or expense in excess of what is prescribed, the Department shall cause such invalid or excess fee or expense to be refunded to the concerned person, and The amendment made by the Act to Amend Some Nepal Acts, 2082 is unclear. shall impose a fine of one hundred thousand rupees on such licensee. 54. Penalty for Non-Compliance with Order or Direction: Except as provided in this Chapter, if a licensee fails to comply with this Act or the rules, orders, or directions made under this Act, the Department may, for the first time, give a warning; for the second time, impose a fine of fifty thousand rupees; and if the same offense is repeated for a third time, impose a fine of one hundred thousand rupees and cancel the license. 55. Penalty for Acting or Causing Action Contrary to Contract: If any licensee makes a contract with a worker to work in one company and then causes the worker to work in another company with lower remuneration and facilities, or changes the nature of the work, or causes the worker to be employed in a different job than the one for which the worker was sent for foreign employment, or causes the worker to work at lower remuneration and facilities than those promised, the Department shall impose a fine of one hundred thousand rupees on the licensee, and the Department must cause the licensee to pay to the worker the amount of remuneration and facilities that were underpaid. 56. Penalty for Abettor: Any person who is an abettor in an offense under this Act or who incites the commission of such an offense shall be liable to half the penalty prescribed for that offense. 57. Penalty for Person Acting as Head: If any firm, company, organization, or licensee commits an offense punishable under this Chapter, and the officer or employee committing such offense is identified, such officer or employee shall be punished; and if such officer or employee cannot be identified, the person

acting as the head of such firm, company, or organization at the time of the offense shall be punished. 58.

Provided that this Section shall not be deemed to prevent a worker who has gone for foreign employment from filing a complaint within one year from the date of the worker's arrival in the home country. 61.

Investigation and Inquiry into Offenses Relating to Foreign Employment: (1) If the Department comes to know, directly or indirectly, through a complaint or by any other means, that an offense against this Act or the rules made under this Act has been or is about to be committed, the Department may designate an officer of at least the rank of a class three gazetted officer as an Investigating Officer to investigate and inquire into such offense.

(2) While conducting the investigation and inquiry or collecting evidence under sub-section (1), the Investigating Officer shall have all the powers equivalent to those of the police under the prevailing law, including the power to arrest persons involved in the offense, search any place related to the offense, take possession of documents or other objects related to the offense, record statements, and prepare a report (muchulka).

(3) While conducting the investigation and inquiry under sub-section (2), the Investigating Officer may, after recording the statement of the accused and if there is sufficient prima facie evidence of guilt, stating the reasons, either release the accused on bail or personal bond, or if the accused cannot furnish bail or bond, with the permission of the authority having jurisdiction over the case, keep the accused in custody for action, or may, with the permission of such authority, keep the accused in custody for a maximum period of thirty days, not exceeding seven days at a time.

(4) When filing a case in his/her own name after conducting the investigation and inquiry under this Section, the Investigating Officer shall obtain the opinion of the government attorney.

(5) It shall be the duty of the police and all concerned to provide necessary assistance to the Investigating Officer in the investigation and inquiry work under this Section.

(6) The Investigating Officer conducting the investigation and inquiry into offenses relating to foreign employment under this Section may, if there is reasonable and sufficient cause during the investigation, submit a report to the Department showing reasonable and sufficient grounds for suspending the license of any licensee.

(7) Based on the report under sub-section (6), the Department may suspend the license of such licensee for a maximum period of six months. 62.

Power to Arrest: (1) If any person has committed an offense under Section 43 of this Act and there is reason to believe that the person will flee if not arrested immediately, a police officer may arrest such person without a warrant. (2) A person arrested under sub-section (1) shall be produced before the authority having jurisdiction over the case within twenty-four hours, excluding the time required for travel. Chapter 11 Case Proceedings and Adjudication 63. Government of Nepal as Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 64. Provision Relating to Foreign Employment Tribunal: (1) For the purpose of initial proceedings and adjudication of cases other than those specified to be punished by the Department under this Act, the Government of Nepal shall, by publishing a notice in the Nepal Gazette, constitute a three-member Foreign Employment Tribunal consisting of a Judge of the Appellate Court as Chairperson, Amended by the Act to Amend Some Nepal Acts, 2075. a member of the same court designated by the Chairperson of the Labour Court, and an officer of the first class of the judicial service recommended by the Judicial Service Commission as member. (2) The term of office of the Chairperson and members of the

Foreign Employment Tribunal shall be four years. (3) The terms of service and facilities of the Chairperson and members of the Foreign Employment Tribunal shall be as prescribed. (4) The Foreign Employment Tribunal shall exercise its jurisdiction as prescribed. (5) Until the Tribunal under this Section is constituted, the work and proceedings to be done by the Foreign Employment Tribunal under this Act shall be done by the concerned District Court. (6) The Government of Nepal shall provide the necessary staff for the Foreign Employment Tribunal. 65. Procedure for Cases: The proceedings and adjudication of cases filed under this Act shall be conducted in accordance with the Summary Procedure Act, 2028. 66. Appeal: (1) A party dissatisfied with a decision made by the Department under this Act may appeal to the Government of Nepal within thirty-five days from the date of the decision. (2) A party dissatisfied with a decision made by the Foreign Employment Tribunal under this Act may appeal to the Supreme Court within thirty-five days from the date of the decision. Chapter 12 Miscellaneous 67. Department of Foreign Employment: There shall be a Department of Foreign Employment under the Ministry of Labour, Employment and Social Security to carry out work relating to foreign employment. 68.

Appointment of Labour Attaché: (1) The Government of Nepal shall appoint at least a gazetted officer as a Labour Attaché in countries where five thousand or more workers have been sent for foreign employment. (2) The functions, duties, and powers of the Labour Attaché shall be as follows: (a) To inform the Government of Nepal about the labour and employment situation in the country where Nepali workers are present, factual information regarding immigration, and the steps taken by that country to protect labour and international human rights and the interests of workers. (b) To assist in resolving any disputes arising between workers, employer organizations, or licensees. (c) To make necessary arrangements to repatriate workers who have become stranded in the course of foreign employment. Added by the Act to Amend Some Nepal Acts for Gender Equality and Ending Gender-Based Violence, 2072.(c1) To immediately rescue workers who are victims of gender-based violence in the course of foreign employment, initiate proceedings to obtain legal remedies as per the law of the concerned country as necessary, and make arrangements to repatriate the victim to Nepal through the concerned foreign employment entrepreneur depending on the situation. (d) To provide information to the Government of Nepal if work suitable to the skills of Nepali workers is available in the concerned country. (e) To take initiative to repatriate the bodies of workers affected by natural disasters or who have died for any reason, with the assistance of the concerned country or employer organization. (f) To attempt to make bilateral agreements at the government level for the supply of workers from Nepal. (g) To provide necessary counseling to workers and discourage them from doing work other than that specified in the contract. (h) To supervise activities that may affect workers. (i) To perform other functions as specified by the Government of Nepal from time to time. (3) If both a diplomatic mission and a Labour Attaché exist in a foreign country, the obligation to perform the functions and duties mentioned in sub-section (1) shall vest in the Labour Attaché. 69.

Repatriation of Worker's Earnings: (1) Nepali workers who have gone for foreign employment must repatriate their savings earned through a bank or a licensed banking service providing institution to their home country. (2) Notwithstanding anything contained in sub-section (1), any worker may bring along with him/her the savings earned in the course of foreign employment when returning to the home country. (3) If any Nepali worker repatriates earnings earned while staying abroad within the period specified in the contract through a bank or a banking service providing institution, such worker shall be provided with facilities as prescribed. 70. License Not to Be Issued: Notwithstanding anything contained elsewhere in this Act, a license shall not be issued to any institution if a person who has been convicted by a court for any offense under this Act and five years have not elapsed since such conviction, and if such person is a manager or operator of that company. 71. Government of Nepal May Reward: (1) The Government of Nepal may, based on prescribed criteria and

on the recommendation of the Board, reward one outstanding licensee each year with a certificate of appreciation. (2) Other provisions relating to rewarding licensees shall be as prescribed. 72. Provision Relating to Health Examination: (1) A worker going for foreign employment must undergo a health examination at a health institution approved by the Government of Nepal before going abroad. (2) If a person who has undergone a health examination under sub-section (1) and has gone for foreign employment is compelled to return to the home country due to a false health examination report given knowingly, negligently, or with bad faith, the institution that conducted such false health examination shall bear the expenses incurred while going for foreign employment and returning. (3) There shall be an expert committee as prescribed to decide whether a false health examination report was given under sub-section (2). 73. Provision for Labour Desk: (1) The Government of Nepal may establish Amended by the Act to Amend Some Nepal Acts, 2082. a Labour Desk at the international airport and, as necessary, at other places to check whether a worker about to go for foreign employment is going in accordance with this Act. (2) The Labour Desk under sub-section (1) shall check whether the worker has the necessary documents, including foreign employment permission, orientation certificate, payment receipt or voucher, and the like. (3) The Labour Desk under sub-section (1) shall send a report, including records of workers who have gone for foreign employment, to the Ministry every week. 74.

Provision Relating to Opening Branches and Appointing Representatives (Agents): (1) A licensee may open a branch or appoint a representative in the country where it sends workers, with approval as prescribed from the Department. (2) A licensee may open a branch Deleted by the Act to Amend Some Nepal Acts, 2075. within Nepal with approval as prescribed from the Department. (3) When appointing a representative under sub-section (1) or (2), a deposit must be kept as prescribed, and the licensee shall remain liable for the acts and actions of such representatives. (4) Amended by the Act to Amend Some Nepal Acts, 2075. Other provisions relating to opening branches and appointing representatives in foreign countries shall be as prescribed. 75. Provision for Repatriating Workers: (1) If a worker becomes stranded due to not receiving the facilities as per the contract and a situation arises requiring the worker to be repatriated, the concerned licensee must repatriate such worker. (2) If it becomes necessary to immediately repatriate workers due to war, epidemic, or natural disaster in the country where Nepali workers are present, the Government of Nepal shall make arrangements to repatriate the workers through the diplomatic mission or the Labour Attaché. 76. Obligation to Return Home After Expiry of Visa: (1) Workers who have gone for foreign employment under this Act must return home after the expiry of the visa of the concerned country. (2) The licensee shall have the obligation to repatriate, with the assistance of the Department, workers who do not return home under sub-section (1). (3) Amended by the Act to Amend Some Nepal Acts, 2082. After a worker has been repatriated under sub-section (2), the Government of Nepal may impose a ban preventing such repatriated person from going to the concerned country for up to Amended by the Act to Amend Some Nepal Acts, 2082. one year. 77. Facilities to Licensees: Licensees shall be provided with facilities as prescribed when dealing in foreign currency in the course of operating a foreign employment business. 78. Publication of Details Relating to Licensed Institutions: (1) The Department shall, from time to time, publish details including the name, address, telephone number, details of appointed representatives (agents) or branches opened, and the term of the license of institutions that have obtained licenses under this Act, through various newspapers or its website. (2) When publishing details under sub-section (1), if an investigation or action is underway against any licensee for an offense under this Act, or if any licensee's license has been cancelled, that fact must also be updated. 79.

Relating to the Work and Proceedings of the Department: (1) The Department shall submit a monthly report of its work and proceedings under this Act to the Government of Nepal, Ministry of Labour, Employment and

Social Security. (2) The Ministry may, from time to time, give necessary directions to the Department regarding the work and proceedings to be done under this Act. 80. Records and Reports: (1) A licensee must maintain records of workers sent for foreign employment as prescribed. The Department may inspect, call for, and examine such records at any time. (2) Every licensee shall submit an annual report to the Department, disclosing the prescribed details, within thirty days of the end of each fiscal year. 81. Delegation of Powers: (1) The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate some of its powers under this Act to any government body or officer. (2) The Board may delegate some of its powers under this Act to the Executive Director. 82. Power to Remove Difficulties: If any difficulty arises in implementing the objectives of this Act, the Government of Nepal may, by publishing a notice in the Nepal Gazette, issue necessary orders to remove such difficulty. 83. Protection for Acts Done in Good Faith: No government employee shall be personally liable for the exercise of powers conferred by this Act if done in good faith. 84. Matters to Be as per This Act: Matters mentioned in this Act shall be as per this Act, and matters not mentioned herein shall be as per the prevailing Nepali law. 85. Power to Make Rules: The Government of Nepal may make necessary rules to implement the objectives of this Act. 86. Repeal and Saving: (1) The Foreign Employment Act, 2042 is hereby repealed. (2) All work and proceedings done under the Foreign Employment Act, 2042 shall be deemed to have been done under this Act. 87. Transfer of Cases: Cases filed in the District Court after investigation and inquiry by the Department under the Foreign Employment Act, 2042 at the time of the commencement of this Act shall, after the constitution of the Tribunal under Section 64, be transferred to that Tribunal.